

STATE OF NEW YORK

5275--A

Cal. No. 459

2025-2026 Regular Sessions

IN SENATE

February 20, 2025

Introduced by Sens. BAILEY, GALLIVAN, MURRAY, OBERACKER, SALAZAR, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to permitting certain licensed athletic trainers to practice in New York state if they are licensed to practice in another state, territory or country

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 8356 of the education law is amended by adding a new subdivision 4 to read as follows:

4. (a) Any person who is licensed or title-protected as an athletic trainer, or as an athletic therapist credentialed by a foreign government and in good standing in another state, territory, or country, and who has a written agreement to provide athletic training services to athletes and team personnel of a United States sports team recognized by the United States Olympic and Paralympic Committees or an out-of-state secondary school, an institution of postsecondary education, a professional or amateur athletic organization sports team, or a performing arts troupe, may provide athletic training services to such athletes and team personnel at a discrete sanctioned team sporting event or performance at a secondary school, institution of postsecondary education, professional athletic organization, amateur athletic organization, non-profit athletic organization, dance organization, military academy or facility of the United States, fire training program or academy, or police training school or academy in this state, provided such services are provided only to such athletes and team personnel at such discrete sanctioned team sporting event or performance. Any such athletic train-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 ing services shall be provided only five days before through three days
2 after each such discrete sanctioned team sporting event or traveling
3 performance.

4 (b) Any person practicing as an athletic trainer in this state pursu-
5 ant to this subdivision shall be subject to the personal and subject
6 matter jurisdiction and disciplinary and regulatory authority of the
7 board of regents as if such person is a licensee and as if the exemption
8 pursuant to this subdivision is a license. Such individual shall comply
9 with applicable provisions of the rules of the board of regents, and the
10 regulations of the commissioner, relating to professional misconduct,
11 disciplinary proceedings and penalties for professional misconduct.

12 § 2. This act shall take effect on the same date and in the same
13 manner as chapter 733 of the laws of 2023, takes effect. Effective
14 immediately, the addition, amendment and/or repeal of any rule or regu-
15 lation necessary for the implementation of this act on its effective
16 date are authorized to be made and completed on or before such effective
17 date.